

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

Accordingly, defendant's demurrer is sustained with leave to amend. Plaintiff shall file and serve an amended complaint on or before **May 12, 2026**.

Defendant Christy Chasatain's Motion to Quash Summons and Service of Summons

Defendant moves to quash the service of the three-day notices attached to the complaint and summons on the grounds that service was not properly effectuated.

Plaintiff bears the burden "to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The filing of a proof of service that complies with statutory standards creates a rebuttable presumption that service was proper. (Evid. Code § 647.)

Here, the proofs of service for the posting and mailing of the three-day notices attached to the complaint and the personal service of the summons and complaint, and were effectuated by a registered California process server, comply with the statutory standards. Defendant's denial that personal service was not effectuated, absent any other affirmative evidence, is not sufficient to overcome the presumption. (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.) Nor does defendant provide authority that walking onto her property past a gate invalidates service.

Accordingly, defendant's motion to quash is denied. Defendant shall file a responsive pleading five days after service upon them of the order after hearing. (Code Civ. Proc., § 1167.4, subd. (b).)

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Defendant County of Placer's Motion for Summary Judgment

Defendant County of Placer moves for summary judgment as to plaintiffs Frances Guinasso, individually, and as an heir for Jacob Newell (deceased) and Thomas Newell in plaintiffs' fourth amended complaint. Because defendant moved only for summary judgment, and did not move for summary adjudication in the alternative, defendant must defeat all of plaintiffs' causes of action to prevail. (Code Civ. Proc., § 437c, subds. (a)(1), (c).) *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1527.) Here, however, defendant does not present evidence, and therefore does not meet its initial burden, to defeat plaintiffs Natash Clark, individually and as Guardian Ad Litem for Brinley Newell and

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 7, 2026, AT 8:30 A.M.

Estate of Jacob Newell, through estate administrator, Frances Guinasso's causes of action. As such, defendant does not meet its burden to establish the action has not merit to warrant summary judgment.

Nor can the court treat the motion for summary judgment as a motion for summary adjudication. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545–46.)

Accordingly, defendant's motion for summary judgment is denied.

4. S-CV-0048888 WOODLAND, LOGAN v. VOLKSWAGEN GROUP

Plaintiffs' Motion to File Under Seal Portions of Petitions and Orders for Compromise of Minors' Claims and Creation of a Trust, and all Related Later Filed Documents

Plaintiff's unopposed motion to seal is granted.

Court records are presumed to be open to the public unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550, subd. (c).) This presumption, however, is not absolute. (*See McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31.) The court may order a record be filed under seal upon express findings of fact that establish: (1) an overriding interest that overcomes the public's right to access, (2) an overriding interest supporting sealing the record, (3) a substantial probability that the overriding interest will be prejudiced if the record is not sealed, (4) the sealing of the record is narrowly tailored, and (5) there are no less restrictive means to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d).) This rule applies to sealed records or records proposed to be sealed by court order. (*Id.* at subd. (a)(1).)

The court finds, based on the moving papers and supporting documents, that an overriding interest exists in the parties' settlement amounts and related financial and personally identifying information that overcomes the right of public access to the records to be sealed. (Cal. Rules of Court, Rule 2.550, subd. (d).) The court finds that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. (*Ibid.*) The court further finds the proposed sealing of information is narrowly tailored, and that no less restrictive means to achieve the identified overriding interest exists. (*Ibid.*)

Plaintiffs Logan Woodland, Madison Woodland, and Peyton Woodland's respective petitions for approval of compromise of claim for minor are sealed. The clerks shall